

Rajesh Yadav v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 9 May 2023 · 2023:AHC:99432-DB · Writ C No. 14926 of 2023
· **Disposed; fresh order after hearing under Supply Code.**

HEADNOTE

On the licensee's statement that a theft recovery notice would be withdrawn, the writ was disposed of with liberty to pass a fresh order after hearing, strictly in accordance with the procedure in the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Rajesh Yadav filed a writ in the Allahabad High Court against U.P. Power Corporation Ltd. and two others, challenging a recovery notice dated 13 December 2022 issued by respondent No. 3 for alleged theft of electricity. On 2 May 2023 the Division Bench gave departmental counsel time to obtain instructions and listed the matter afresh on 9 May 2023. Counsel then stated, on instructions, that the respondents would withdraw the notice and pass a fresh order after hearing the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

fresh recovery order after hearing

HOLDING

The writ was disposed of on the respondents' statement that the recovery notice dated 13.12.2022 would be withdrawn, with liberty to pass a fresh order only after hearing the petitioner and strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. The Court did not decide the theft allegation. ¶ 1-3

FLAG Order names the U.P. Electricity Supply Code, 2005 only; no clause number is stated.

PRINCIPLE TAGS

UP-2005::procedure-prescribed The writ was disposed once the licensee agreed to withdraw the 13.12.2022 theft recovery notice, leaving any fresh order to be passed after hearing and strictly under the procedure prescribed in the U.P. Electricity Supply Code, 2005. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY AND WHAT RECOVERY, IF ANY, COULD BE RAISED BY A FRESH ORDER

The impugned notice was withdrawn without adjudication. The respondents were left at liberty to pass a fresh order after hearing. ¶ 1-3